THE STATE versus

CALVIN MUNORWEI

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J with Assessors Mr. J. G. Nish and Mr. O. Mazonde
MASVINGO: 4, 6, 13 & 23 March 2026

Criminal Trial

M. Tembo, for the State
C. Ndlovu, for the accused

DUBE-BANDA J:

[1] This is, in terms of s 10 (2) of the High Court Act [*Chapter 7:06*], a majority judgment of this court. In analysing the evidence presented in this trial, the court will bear in mind the provisions of s 10(4) of the Act, which enjoins a court to give reasons for the decision or finding of the dissenting member.

[2] The accused appears before this court facing crime of murder as defined in s 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("Criminal Law Code"). It being alleged that on 13 December 2024, along Masvingo – Beitbridge Road, Masvingo, the accused unlawfully caused the death of Laura Tendai Saineti (hereinafter referred to as " the deceased") by assaulting her, intending to kill her, or realising that his conduct may cause death, and continued to engage in that conduct despite the risk or possibility.

[3] The accused was legally represented throughout the trial. He pleaded not guilty to the indictment. The prosecutor tendered an outline of the State's case, and the accused tendered an outline of his defence case. In addition, the prosecutor produced, with the consent of the accused, the following documentary exhibits: the post-mortem report and four photographs depicting the body of the deceased and the vicinity of where it was located.

[4] In his defence outline, the accused denied that he killed the deceased and stated that, in his view, she either accidentally fell off a moving vehicle or intentionally jumped out of a moving vehicle. In addition, he stated that the findings of the doctor who examined the remains

of the deceased and compiled a postmortem report were challenged. He sought that he be found not guilty and acquitted.

[5] The prosecutor sought and obtained admissions from the accused in terms of s 314 of the Criminal Procedure & Evidence Act [*Chapter 9:07*] ("CP & E Act"). The admissions relate to the evidence of two witnesses as it appears in the State's synopsis of evidence. The first was the evidence of Takudzwa Innocent Chibaya ("Chibaya"). His evidence is that the deceased was his friend. He knew the accused as the deceased's boyfriend. On 13 December 2024, around midday, he picked the deceased from her residence in Clipsham Heights, Masvingo. The two drove to Juliet Chacha's ("Chacha") residence and picked her up. He spent the rest of the day with the deceased and her friend Chacha. They went to the DB Stopover Complex, where the deceased and Chacha were drinking liquor. While at the complex, the deceased got a call from the accused but did not answer the call. He left the deceased and Chacha at the deceased's residence and only returned when Chacha called him, requesting transport. Chacha told him that the accused and the deceased had driven away. At around 2000 hours, he got a call from Rejoice Manhanga ("Manhanga") advising her that the accused and the deceased were having a misunderstanding. The following morning, he learned of the deceased's death.

[6] The second s 314 witness was Sandra Sibanda, the investigating officer. Her evidence is that she arrested the accused on 16 December 2024. She recorded statements from witnesses, and a warned and cautioned statement from the accused. The statement was confirmed by a magistrate. In the trial, the confirmed statement of the accused was not produced in evidence. The prosecutor informed the court that the State decided not to produce the statement because it was the same as the accused's defence outline. This was a very unfortunate and unsatisfactory approach, particularly in a case like this, where a human being lost her life in tragic circumstances. In any event, a defence outline is not evidence like a confirmed statement. See *Wairosi v The State* SC-20-15; *Chogova v The State* 1999 (2) ZLR 206. Therefore, the fact that a defence outline is the same as a confirmed statement cannot be a valid reason not to produce such a statement. In addition, this witness drew a sketch plan from the indications made by witnesses. This sketch plan was not produced, nor was there any attempt to produce it. No reason or explanation was proffered for the non-production of the sketch plan. In general, it is very important that all relevant and admissible evidence, incriminating or exculpatory, be produced for consideration by the court.

[7] For purposes of contextual background and completeness, the evidence of the witnesses shall be summarised. The first witness was Juliet Chacha. In summary, her evidence was that on 13 December 2024, the deceased, in the company of Chibaya, took her from her residence. The three spent the afternoon together moving from restaurants and bars in the city of Masvingo. While they were still having drinks at a certain bar, the deceased got a phone call from the accused that she had to collect rims from Croco Motors. The trio proceeded to Crocco Motors, where they collected four rims. Later, while they were at another bar, the accused called the deceased, and she did not answer the phone call. The accused kept calling, and the deceased was not answering his calls. The accused then phoned her (Chacha) mobile phone; the deceased told her not to answer the call. At around 2000 hours, the deceased requested Chibaya to drive her home because the accused might be at her residence to see her. This witness said she was sober and in her view the deceased was not intoxicated. When they got to the deceased's residence, Chibaya parked his motor vehicle thirty to thirty-five metres from the residence. This witness and the deceased carried two rims each and proceeded to the house. At that moment, the accused appeared. The first thing he said was to ask the deceased the reason she was not answering his phone calls. She did not hear of any quarrel between the accused and the deceased. The witness said she could not tell whether the accused saw Chibaya's vehicle. The accused then asked for the rims the witness was carrying, and she gave them to him. She left the two discussing why the deceased was not answering the accused's phone calls. She later saw the deceased getting into the accused's vehicle. She testified that she was not sure whether the deceased was seated in the front passenger seat or back seat in the accused's pickup vehicle. In her evidence in chief, she disputed that the deceased was in the loading box of the vehicle.

[8] Under cross-examination, Chacha testified that she did not know whether Chibaya was in a love relationship with the deceased. It was put to her that, according to the accused, the deceased was visibly intoxicated; she insisted that she did not see that she was intoxicated. She agreed that she did not see the accused assaulting the deceased. She said at the time they were at the deceased's residence; it was dark. She agreed that she assumed that the deceased was seated either in the front passenger seat or the back seat. She agreed that she did not know how the deceased died.

[9] Ms. Juliet Chacha was a good and credible witness. She was so truthful that she readily conceded that she assumed that the deceased was seated either in the back seat or front

passenger seat in the accused' s vehicle. In fact, it was a reasonable assumption to make because the two were lovers. She had no reason to think that the deceased could have been in the loading box. Her evidence is accepted without hesitation.

[10] The second witness was Rejoice Manhanga ("Manhanga"). In summary, her evidence was that she knew the accused as the deceased' s boyfriend. On 13 December 2024, the accused phoned her and said the deceased was not answering his calls. She phoned the deceased, and again she did not answer her call. Later, the accused called and said he had seen the deceased in the company of Chacha. After some time, the accused called and said he was driving to where the witness was, to leave the deceased in her company. When the accused and the deceased got to Sunrise Mall, where she was, the deceased was in the loading box. She observed that the two had a misunderstanding arising from the deceased not answering the accused's phone calls. The accused said he had come to leave the deceased with her. She tried to convince the deceased to disembark from the accused's vehicle. The accused was also asking her to disembark from the vehicle. The deceased refused. The deceased told the witness not to involve herself in her issues; she was going to solve her problems. The witness suggested to the accused that they contact the deceased's mother, and the accused turned down the suggestion. The deceased handed her phone to the witness and said, "Whatever happens." This witness testified that the deceased said that if the accused terminated their relationship, "something big was going to happen." Later the accused drove off, and the deceased was still in the loading box. After a little while, the accused phoned the witness, telling her that he could not locate the deceased. She heard of the deceased's death on 14 December 2024.

[11] Ms. Rejoice Manhanga came across as a witness who had a good recall of events. She was crossed examined, and the tenor of the cross examination was not aimed at challenging her evidence. There is no reason not to accept her evidence.

[12] The third witness was Farai Kazirara ("Kazirara"). His evidence was that he is a member of the Zimbabwe Republic Police ("ZRP") and at the material time he was attached to the Criminal Intelligence Unit at Masvingo. He attended the scene and observed that the body of the deceased was lying a few meters from the road. The body had a scar on the mouth and right ankle. There was evidence of bleeding from the nose and ears. Kazirara is the one who took the four photographs that were produced as exhibits in this court. He said there were no signs of struggle or marks of violence at the scene. His opinion was that the way the body was lying on the ground, chances were high that the deceased fell from a motor vehicle whilst it

was in motion. He testified that he did not see a murder weapon. He opined that the case was complex; it could have been murder or a road traffic accident. The view of this court is that Mr Kazirara was an honest witness; he merely told the court what he saw and did at the scene. His evidence was not challenged in cross-examination, and it is accepted.

[13] The fourth witness was Lloyd Round ("Round"). His evidence was that he is a constable in the police attached to the traffic section. He had been in the traffic section for two years. He attended workshops and did a course in road accident investigation. He attended the scene, which was 5 km from Masvingo. He examined the body and its surroundings. He saw a cell phone and a shoe close to the body. The body had blood on the ears, nose, and mouth, and a wound on the head. He did not see drops of blood at the scene. The deceased was putting on a t-shirt and a pair of jeans. On one leg, she had a tiny scar, which had blood on it. He said he got hold of the head and observed that the skull might have been struck by some object and fractured. There were no struggle marks at the scene. No struggle marks on the clothes. The clothes were clean, not soiled. He testified that the significance of the fact that the clothes were clean and not soiled shows that it was not a traffic accident. He said a person does not fall from a moving vehicle like a tree. He said if a person falls from a moving vehicle, she will move even when the body gets to the ground. He opined that maybe something had happened to the deceased, and her body was placed by the roadside.

[14] During his evidence in chief, the prosecutor put to him that in his statement, he said there was a possibility that the deceased might have jumped from a moving vehicle. The witness said he meant that he could not conclude conclusively what exactly happened. He then said, "…but what I concluded was that maybe the body of the deceased was placed at the scene when she was dead." He was questioned about the blood on the head; his answer was that he thought the blood came from the injuries when the deceased was "injured."

[15] Under cross-examination, this witness testified that he signed two statements. It was put to him that in one statement, he said, "…the body was lying on the ground, and she could have fallen from a moving motor vehicle." The witness agreed and said, "…from what is written there, it is correct. After some investigations and opinions, I recorded another statement explaining." He conceded that there was a possibility that the deceased might have fallen from a moving motor vehicle.

[16] The evidence shows that this witness recorded more than one statement. The prosecutor questioned him about the one where he said there was a possibility that the deceased jumped from a moving vehicle. The prosecutor did not disclose to the court that the witness recorded another statement where he expressed a different opinion. This approach is rather disconcerting. The court got to know about the existence of the other statement during crossexamination. The witness was confronted with the statements both in examination in chief and cross examination. However, these statements were not produced as exhibits. This was also disconcerting. It is trite that a cross-examiner may cross-examine on a document without handing it in as an exhibit. However, if there is cross-examination on the content itself, or if it is used to contradict the witness, the document must be handed in. See: Pretorius JP *CrossExamination in South African Law* (LexisNexis Butterworths 1977) 315; *S* v *Donga* HB-97-22 at p 9. In this case, the failure to produce the statements is watered down by the fact that the witness conceded that he made more than one statement, and, in each statement, he postulated a different hypothesis.

[17] Mr. Round was a good witness with a clear recollection of what he observed at the scene. On reflection, and after a further examination of the scene, he changed his opinion. There is nothing irregular about an expert witness, if needs be, revisiting an earlier opinion and changing it. His evidence is accepted without qualification.

[18] The fifth and last witness was Dr. Godfrey Zimbwa. His evidence was that he is a medical doctor, and he holds a Bachelor of Medicine and Surgery ("MBCHB"). He examined the remains of the deceased and noted a depressed skull fracture, which was on the left frontal bone, i.e., the forehead. There was a facial symmetry, i.e., the two sides of the face appeared different. He emphasised that the two sides of the face are supposed to be a mirror image of each other. There was also associated left frontal area bruising and bleeding. The clothes were intact. The neck was very loose, moving freely with a cracking sound. The doctor opined that the cause of death was head injury, neck fracture, and blunt trauma, i.e., assault. He explained that the injury was caused by a blow to the face. He said if the deceased fell from a motor vehicle, that vehicle must have been stationary. He said his opinion was anchored on the fact that that clothes were intact and the body had no bruises. He said this ruled out the possibility of injuries sustained from falling off a vehicle in motion. He said if someone jumps or falls from a moving vehicle, one would expect to see extensively torn clothes and multiple bruises on the body, and skin abrasions caused by friction between the ground and the skin. Depending

on the speed of the vehicle, one would expect to see multiple bone fractures. In addition, he said what prompted him to conclude that the deceased was assaulted was that the question he had to answer was whether the deceased was assaulted or fell on a hard surface. He said if one falls on a hard surface, the area of the injury turns to be wider. It might cover the whole face. However, an assault with a club or blunt object covers a more defined area and is usually a smaller area. In this case, the area of the injury was smaller and defined, and almost like a fingerprint of the weapon used. The doctor emphasised that these observations led him to conclude that the deceased died of assault as opposed to falling on a hard surface. Regarding the broken neck, he explained that if someone is hit on the head with severe force, this may cause a head injury and a neck fracture or cause a dislocation in the neck. He said it was very unlikely that the deceased fell from a moving motor vehicle. Regarding the blood on the shoulder, as is shown in Exhibit 4 (the photograph of the body taken at the scene), he said, "….as you can see, that is the left shoulder – we also see the facial injuries are on the left side of the face. So, this is the blood from the face that went on the blouse. One could also conclude that the injury happened when this person was either seated or standing. Blood will be dripping by gravity to the shoulder area as opposed to when one is in a lying position, where the blood will flow to the other side of the face by gravity." The doctor expressed an opinion that the body of the deceased was likely brought to the scene because the injuries were not consistent with motion injuries. Pressed further, the doctor said he could not think of a different opinion, unless the deceased fell or jumped from a stationary vehicle. He said it was so because the injuries happened when the body was stationary. His final opinion was that the death was a result of a severe direct blow to the forehead, causing both head injury and neck fracture. He emphasised that this blow happened when the body was stationary.

[19] Under cross-examination, the doctor confirmed that he was a general practitioner. He accepted that he had not done a special course on bodies falling from moving vehicles. However, he explained that he has examined many bodies of deceased persons who died in road accidents, and "perhaps very few of them falling from vehicles". Questioned about what he meant in his evidence in chief that someone more qualified could comment, his answer was that a pathologist is not trained to attend to a scene of crime or accidents, but to examine injuries and express an opinion as to how they might have been caused. Questioned whether he agreed that another doctor might, on the facts of this case, arrive at a different conclusion on the cause of death. His answer was that if the training and experience were the same, he could not see

how another doctor could come to a different conclusion. He said he believed that his assessments were correct, and someone better qualified should come to the same conclusion. It was put to him that drunkenness affects one's ability to move, and he agreed. He was asked as to what blunt trauma was, and he said that it is an injury by a weapon that is not sharp. He was asked whether a fall on a hard surface was excluded from blunt trauma; his answer was that it was not. He testified that he did not determine the time of death. He was questioned whether he saw an injury on the ankle, and he said he did not see such an injury. When it was put to him that he did not carry out a thorough examination of the body, his answer was that he did his best and noted all the important points. This witness emphasised that if the deceased had fallen on a hard surface, the injuries would have covered a wider area or the whole face. It was put to him that if the deceased fell from a motor vehicle headlong, would she have suffered the injury on the face. The witness emphasised that if she had fallen on her face, injuries would have covered a wide area or the whole face. He was asked whether it was his evidence that each time one falls from a vehicle, the clothes must be torn. His answer was "most certainly." He said if one falls from a vehicle traveling more than 30 km/h, they will suffer serious injuries and their clothes will be torn. Put to him that a fall from a moving vehicle can cause leg injury and head fracture, his answer was that he agreed totally and added that a fall from a moving vehicle can cause multiple fractures. It was put to the witness that in his evidence in chief, he testified that probably death was a result of assault; his answer was "yes". Asked about the other possibilities, his answer was that "I have already explained that I was faced with two possible scenarios, which were either an assault or a fall on a hard surface. In theory, those are the two possibilities."

[20] After the testimony of Dr. Godfrey Zimbwa, the prosecutor closed the State's case, and the defence opened its case.

[21] The accused testified in his defence. In summary, his evidence was that the deceased was his girlfriend. After she lost her job in December 2023, he was helping her with food, rent, and other requirements for her upkeep. On 13 December 2024, in the morning, he went to the deceased's residence and gave her USD$400.00 to buy rims for her car. He then departed for Harare. On his way back to Masvingo, he made numerous phone calls to the deceased and her friend Chacha, and both were not answering his calls. On his arrival back in Masvingo, he went to check on the deceased at her residence. At the residence, he saw her in the company of her friend Chacha, and both were carrying rims. He asked the deceased the reason she was not

answering his calls, and she failed to give a satisfactory explanation. The deceased was intoxicated. He took possession of the rims and put them in his vehicle and informed the deceased that he had terminated their relationship. He decided to leave, and to stop her from getting inside his vehicle, he locked all the doors, which made her jump into the loading box. He phoned the deceased's friend, Manhanga, and advised her that he was coming to leave the deceased in her company. They got to Manhanga and the deceased told her not to interfere in her issues, and that if the accused terminated their relationship, "something big was going to happen." Manhanga advised him to take the deceased back to her residence since she had refused to disembark from his vehicle. He drove back to the deceased's residence, and on the way, he stopped the vehicle and tried to convince her that she had to accept that their relationship was not working and had to end. The deceased got infuriated, and he resumed the journey to her residence. When he got to her residence, he made a U-turn and stopped, and did not enter the premises. He parked the vehicle along the road. When he disembarked, he noticed that the deceased was no longer in the loading box. He thought she disembarked and went to the house when he was on the phone. He went to the house and noticed that the doors were not locked. He entered the house to look for her. She was not at the house. He called her name, and there was no answer. He went back to the vehicle and contacted Manhanga and told her that the deceased was missing. He drove off looking for her and made numerous calls and sent messages in vain. He was shocked, the following day, to hear that her body was found along the road. He testified that he neither assaulted nor killed the deceased, and he does not know how she got out of the vehicle. His view is that she either accidentally fell off the moving vehicle or intentionally jumped out of the moving vehicle.

[22] Under cross-examination, the accused testified that he had been in a relationship with the deceased for a year and a half, and he was assisting her financially. Until the time of her death, they had a normal relationship, even though they had disagreements about alcohol abuse and about Chibaya. After leaving Manhanga, he stopped the vehicle about 3km from where the body of the deceased was found. The reason for the stoppage was to try to convince her that their relationship was not working, and she had to accept that reality. When he realised that she was no longer in the vehicle, he looked for her along the road that he had used going to her residence. He did not see her, and he went to some public places and did not find her. He said when he left Manhanga, the deceased was standing in the loading box. The last question was

"your opinion is she may have fallen or jumped from the vehicle," and the answer was "yes, My Lord."

[23] The accused's version was not subjected to thorough cross-examination. He was subjected to cross-examination in name, and examination in chief in content. It is so because the primary and overall objective of cross-examination is, in the first instance, to test the evidence of the witness so that the court may be able to assess its reliability. In this case, there was no attempt to elicit evidence favourable or advantageous to the State case; there was no attempt to demolish the accused's version; there was no attempt to undermine the credibility of the accused; and the State case was not adequately put to the accused. It is trite that the purpose of a criminal prosecution is not to obtain a conviction, but to place before the court what the State considers to be credible evidence relevant to what is alleged to be a crime. The prosecutor has a duty to see that all available evidence is presented: this should be done firmly and pressed to its legitimate strength, but it must also be done fairly. See *Smyth* v *Ushewokunze and another* [1998] 1 All SA 340 (Z), 1998 (2) BCLR 170 (ZS). In this case, it does not appear to the court that the State's case was pressed to its legitimate strength.

[24] As will be shown later in this judgment, there are instances where the accused might not have been candid with the court. In other words, where the truth might not have been told, or where the accused might have outrightly lied to this court.

[25] In his closing submissions, the prosecutor Mr *Tembo* argued that the State had not proved its case as required by the law, and the accused was entitled to an acquittal. Mr *Ndlovu* associated himself with the submissions of Mr. *Tembo* and emphasized that the State has not proved its case, and the accused must be acquitted. Both counsels emphasised the weaknesses, in detail, of the State case. As a result, the court had no benefit of submissions in support of the State's case. Notwithstanding this rather unfortunate occurrence, the court has an obligation to examine all the evidence, i.e., against and in favour of the accused. It must be said that this court is not suggesting that in every case the prosecutor must address with a view of securing a conviction even where there is no evidence to support it. However, in this case, there is a lot that could be said in support of the State case.

[26] The central question that this court must answer is whether the State has proved its case beyond a reasonable doubt. The State case is that on 13 December 2024, along MasvingoBeitbridge Road, Masvingo, the accused unlawfully assaulted the deceased, causing

her death. The duty of the court is to evaluate the evidence in its totality to establish whether the State has met the required standard of proof. The proper test is that an accused is bound to be convicted if the evidence establishes his guilt beyond a reasonable doubt, and the logical corollary is that he must be acquitted if it is reasonably possible that he might be innocent. See: *S* v *Jochems* 1991 (1) SACR 208 (A), *S* v *Jaffer* 1988 (2) SA 84 (C), *S* v *Kubeka* 1982 (1) SA 534 (W) at 537 F-H. It is trite that a court must examine all the evidence. A court does not look at the evidence implicating the accused in isolation to determine whether there is proof beyond a reasonable doubt, and so too it does not look at the exculpatory evidence in isolation to determine whether it is reasonably possible that it might be true. See *R* v *Hlongwane* 1959 (3) SA 337 (A) at 341A *S* v *Chabalala (Chabalala)* 2003 (1) SACR 134 (SCA) para 15 at 139I-

140B. There is no *onus* on the part of an accused to prove his or her innocence or convince the court of the truthfulness of any explanation that he or she gives. In other words, if his version is reasonably possibly true, he is entitled to be acquitted. In *S* v *V* 2000(1) SACR 453 (A) para 3, the position is articulated as follows:

> '' it is trite that there is no obligation upon an accused person, where the State bears the onus 'to convince the court'. If his version is reasonably possibly true, he is entitled to his acquittal even though his explanation is improbable. A court is not entitled to convict unless it is satisfied not only that the explanation is improbable but that beyond reasonable doubt it is false. It is permissible to look at the probabilities of the case to determine whether the accused's version is reasonably possibly true but whether one subjectively believes him is not the test. As pointed out in many judgments of this Court and other courts the test is whether there is a reasonable possibility that the accused's evidence may be true.'

[27] There is no direct evidence or an eyewitness to what caused the death of the deceased. The question the court must answer is whether there is circumstantial evidence to show that the accused caused the death of the deceased. It is important to state that circumstantial evidence is no less cogent than direct evidence. On the contrary, it can sometimes be more compelling, as was stated in *S* v *Musingadi and Ors* 2005 (1) SACR 395 (SCA) at paragraph 20. In dealing with each piece of evidence and the inferences to be drawn therefrom, two important principles must be borne in mind. The first is that the court must examine all the evidence. See *R* v *Hlongwane* 1959 (3) SA 337 (A) at 341A. The second principle, which the court must bear in mind in assessing all the evidence, involves the approach to be taken in drawing inferences. Inferences are not to be mere speculation but are to be based on fact. The court in *R* v *Blom* 1939 (AD) 188 laid out two rules of logic to be followed. The first rule is

that the inference sought to be drawn must be consistent with all proven facts. The second rule is that the proven facts must be such that they exclude every other reasonable inference.

[28] In the context of the case, the first question that this court must examine is whether the accused had a motive to hurt the deceased. It is important that the relevance of motive in a criminal trial must be put in its proper context. Motive is not an intention, direct or constructive. It is merely the underlying reason that drives a person to form the intention to commit a crime.

Motive helps explain "why" the accused may have committed the crime. Its existence does not prove guilty. However, bad motive may assist in establishing the guilt of the accused.

[29] On one hand, there is evidence that points to a motive to hurt the deceased. The evidence is that from December 2023, when the deceased lost her job, the accused was taking care of her. He was paying her rent and meeting her financial requirements. He became concerned about her relationship with Chibaya. He saw text messages between Chibaya and the deceased. In addition, at some time, Chibaya phoned the deceased in the presence of the accused. On 13 December 2024, he called her mobile phone many times, and she was not answering. He even called her friend Chacha, but again, there was no answer. That he got angry cannot be seriously disputed; this explains the reason that when he saw her at her residence, he immediately enquired the reason she was not answering his calls. Even when they were with Manhanga, the misunderstanding was that she was not answering his calls. The accused was so upset with her that he decided to terminate the relationship and repossess the rims that he had bought for her. His anger might have been anchored on his thinking that the person he was supporting was cheating on him. He might have been further infuriated by the fact that the deceased was refusing to disembark from his vehicle.

[30] On the other hand, there is no evidence that the accused knew that the deceased spent the afternoon of 13 December 2024 in the company of Chibaya. There is no evidence that he knew that the rims were carried in Chibaya's vehicle. There is no evidence that he knew that it was Chibaya who drove the deceased and Chacha to the deceased's residence on that fateful evening. In addition, the evidence of Manhanga shows that the accused was desirous to end the relationship but not to hurt the deceased. There is evidence that he wanted to leave her at her residence, and she refused. He got into his car and locked the doors, which made the deceased to jump into the loading box. That she was in the loading box cannot be controverted, because when they went to Manhanga, she was in the loading box. The accused opted to go and leave

her with Manhanga, but she refused to disembark from the loading box of the vehicle. These events water down the perception of a motive to hurt the deceased. In other words, these events point out to a disposition to end the relationship rather than to hurt the deceased.

[31] Therefore, regarding motive, this is an evenly balanced case. In a case evenly balanced, the court reverts to the founding principles of criminal law, that a doubt must be resolved in favour of the accused. It is in this regard that the majority find that it has not been proved that the accused had a motive to kill the deceased.

[32 The court now turns to answer the ultimate question of whether the accused assaulted the deceased, causing her death. It is important to mention that the court accepted the opinion evidence of Kazirara and Round on the basis that they are experts. The opinion of an expert is admissible; it only remains a question of weight. The police's first hypothesis was that the deceased might have fallen or jumped from a moving vehicle. This is clear from the evidence of Kazirara and Round. In addition, this was the background information given to Dr. Godfrey Zimbawa, who examined the remains of the deceased. Kazirara held on to this hypothesis to the extent that, in his evidence, he testified that chances were high that the deceased fell from a moving vehicle. In addition, he expressed an opinion that this case was complex; it could have been murder or a road traffic accident.

[33] The traffic officer Round, first held on the hypothesis that the deceased might have fallen from a moving vehicle. This is so because under cross-examination, he confirmed that he signed more than one statements, and that in one statement he said the deceased could have fallen from a moving vehicle. It appears that, on reflection, he changed and opined that the deceased might not have fallen from a moving vehicle. He arrived at this opinion because the deceased's clothes were clean and not soiled, and that a person does not fall from a moving vehicle like a tree, she will keep moving even while on the ground. He said, “maybe something happened to the deceased, and her body was placed by the roadside.” He then formulated the second hypothesis that it was not a traffic accident. A closer scrutiny of the evidence of Round, shows that he remained ambivalent or divided between these two mutually destructive hypotheses, i.e., whether the deceased died from falling from a moving vehicle or whether she died because of an assault. This is so because, in cross-examination, he conceded that he could not rule out the possibility that the deceased might have fallen from a moving vehicle. [34] The evidence of the s 314 witnesses provides the background to this matter. It does not deal with the issue of whether the accused assaulted the deceased, thus causing her death. In

addition, the evidence of Chacha and Manhanga is important to the extent that it gives the contextual background to this case. However, it does not deal with the ultimate question of whether the accused assaulted the deceased, thereby causing her death. This is so because Chacha last saw the deceased in the company of the accused on 13 December 2023, when the accused drove from the deceased's residence. She was then informed of her death on 14 December 2024. In addition, Manhanga also last saw the deceased on 13 December 2024 at the Sunrise Mall. She heard of her death the following morning on 14 December 2024.

[35] In summary, the evidence of Chacha and Manhanga shows that they do not know what happened to the deceased, which caused her death. Further, the evidence of Kazirara and Round is not conclusive; it leaves the question open whether the accused assaulted the deceased, causing her death, or whether she jumped or fell from a stationery or slow-moving vehicle. The issue of a slow-moving vehicle, where it arises from, shall be explained later in this judgment. In other words, the evidence of Kazirara and Round leaves a doubt whether the accused assaulted the deceased, causing her death, or she died from jumping from a stationary or slowmoving vehicle. As stated above, a doubt must be resolved in favour of the accused. [36] It is the evidence of Dr. Godfrey Zimbwa that requires closer scrutiny. The doctor opined that the cause of death was head injury, neck fracture, and blunt trauma, i.e., assault. The doctor explained that the injury was caused by a blow to the face. He said if the deceased fell from a vehicle, that vehicle must have been stationary. The doctor ruled out a jump or fall from a moving vehicle. He said if a person jumps or falls from a moving vehicle, one would expect to see extensively torn clothes and multiple bruises on the body, and skin abrasions caused by friction between the ground and the skin. In addition, depending on the speed of the vehicle, one would expect to see multiple bone fractures. He observed that the area of the injury was small and defined, and almost like a fingerprint of the weapon that was used to assault the deceased. He opined that death was a result of a severe direct blow to the forehead, causing both head injury and neck fracture. He emphasised that this blow happened when the body was stationary.

[37] It is important to state that it is not the expert who answers the ultimate question, i.e., whether the accused is guilty or not. It is the court. Even if an expert provides an opinion, the court is not bound by it and may accept or reject it. The reliability and quality of expert evidence are determined by the court at the end of the trial. This is so because the court will have other evidence to juxtapose with that of the expert. Indeed, Dr. Godfrey Zimbwa was a good witness,

trained and experienced. He was a good match for the relevant, intense, and informed crossexamination to which he was subjected. However, the court is rather concerned that he did not notice or comment on the injury to the ankle of the deceased. The importance of the ankle injury cannot be downplayed because the opinion of the doctor, that the deceased did not fall or jump from a moving vehicle is anchored on the fact that her clothes were intact, not torn, and that the body had no bruises. Therefore, an injury to the ankle required a comment or explanation. In addition, the failure to notice that injury seems to give credence to Mr. *Ndlovu's* submission that the doctor might not have thoroughly examined the whole body of the deceased. He might have concentrated on the head and face, where there were serious injuries. This is an issue that this court cannot ignore in the whole matrix of this case.

[38] It is important to note that in the adjudication process, the court considers the evidence, the facts and the probabilities of the case. Probabilities of the case are reasonable inferences that a court may draw from the evidence and the facts. In his defence outline and evidence, the accused did not say he saw the deceased jumping or falling from a motion vehicle. Falling or jumping from a moving vehicle is not a fact, is a hypothesis postulated by the accused. A closer analysis of the evidence of the doctor shows that he excluded falling or jumping from a moving vehicle, and he gave reasons for this conclusion. However, the doctor did not exclude falling or jumping from a stationary vehicle. In addition, the doctor raised the issue of speed; he said, depending on the speed of the vehicle, one would expect to see multiple bone fractures. Therefore, it can be concluded that the higher the speed, the more serious the bone fractures, and the lower the speed, the less serious the fractures or injuries. In addition, the doctor said if one falls from a vehicle traveling more than 30 km/h, they will suffer serious injuries and their clothes will be torn. The converse will be that the less the speed, there will be less injuries and less or no torn clothes. Again, it is important to factor into this analysis that the doctor did not exclude blunt trauma arising from falling or jumping from a stationary vehicle. If such can arise from falling or jumping from a stationary vehicle, it means that such can occur from jumping or falling from a vehicle that was taking off or just taken off. It is in this context that the evidence of Kazirara that chances were high that the deceased fell from a moving vehicle, and the concession by Round that he could not rule out the possibility that the deceased might have fallen from a moving motor vehicle must be understood. Therefore, it can be concluded that the doctor did not exclude falling or jumping from a stationary vehicle or a vehicle that was taking off or just taken off. This must be considered in the context of the doctor's opinion that

the injuries might have occurred when the body was stationary. The difficulty with this opinion is that there is no evidence that such injuries could not have occurred from a jumping or falling from a vehicle that was taking off or had just taken off. It appears the doctor had only in mind a vehicle moving at more than 30km/h.

[39] There is uncontroverted evidence that between Sunrise Mall and the deceased's residence, the accused stopped the vehicle. The probabilities of the case show that this is where the deceased might have fallen or jumped from the vehicle when it was stationary. In addition, this is where the deceased might have jumped or fallen immediately after the accused put the vehicle in motion, and before it gained momentum and speed. On one hand, if the deceased fell or jumped from the vehicle while it was still stationary, the accused must have seen this occurrence and decided to drive off. On the other hand, if the deceased jumped off or fell immediately after the accused put the vehicle in motion and before it gained momentum and speed, he might or might not have seen that happening. This shows that the accused lied that he stopped 3 km from where the body was found. He stopped where the body was found on 14 December 2024. At that stop, that is where the deceased met her death.

[40] The above analysis must be considered in the context of the utterances attributed to the deceased, which suggest that she may have resolved to hurt herself. Manhanga testified that the deceased handed her a mobile phone and said, "whatever happens," and that if the accused terminated their relationship, "something big was going to happen." The appearance and utterances of the deceased concerned Manhanga to the extent that she suggested to the accused that they contact the deceased's mother. As stated above, these utterances suggest that she had resolved to harm herself and did so by either jumping from a stationary vehicle or when the vehicle took off or soon thereafter. In general, lies told by the accused do not prove the State case. See *R v Weinberg* 1939 AD 71 80. In addition, the doctor's failure to notice and comment on the ankle injury cast a dim light on the State case. The above reflects the views of the majority members of this court.

[41] On the other hand, there are pieces of evidence that create a strong suspicion that the accused murdered the deceased. He was the last known person to have been with the deceased during her lifetime. The accused might have attacked the deceased at the stoppage on their way to her place of residence. This is in sync with the doctor's conclusions that the cause of death was head injury, neck fracture, and blunt trauma. In this instance, the blunt trauma is attributed to assault. The reason for the stopping on the way does not sound true, because the accused

knew that the deceased would not accept the termination of their relationship. She had said so, even going to the extent of saying, if the accused terminated their relationship, "something big would happen." In addition, she refused Manhanga to help resolve the problem, and she refused to disembark from the loading box of the vehicle. Therefore, nothing would have made the accused believe she would have changed minutes after leaving Manhanga. To cover up his deed, the accused might have created what would look like a traffic accident. In addition, his evidence that he looked for the deceased following the road that he had driven does not appear to be the truth. It is also concerning that the accused did not have the presence of mind to timeously report the matter to the police, and with the police, look for the deceased along the road he had used. The most logical and reasonable thing for the accused to have done was to return to where the journey started, meticulously checking for the deceased on the roadside. He testified that he checked and did not see the body of the deceased. His explanation for this is that visibility was poor, and his vision was also limited by the lights from oncoming vehicles. This evidence does not appear to be true. It is so because it does not appear in his defence outline. In addition, it was not put to the State witnesses. The accused might have assaulted and killed the deceased, hoping to hide behind the utterances that she made.

[42] The theory of assault might be supported by the examination of the scene, and the evidence of the witnesses. Kazirara said it could have been murder or a traffic accident. Round also said the deceased could have been killed elsewhere and the body placed by the roadside. He supported this opinion on the basis that there were no marks to show that the deceased rolled after jumping or falling from the moving vehicle. No blood was observed on the ground at the scene. The only blood seen was that which was on the body of the deceased and on her blouse. The clothes had no dust to show that the deceased had fallen from a moving object. In general, before being subjected to scrutiny, the opinion of Dr. Zimbwa of assault supports these observations. These observations support the dissenting decision that the evidence tips the scales in favour of a finding that the accused assaulted the deceased, causing her death, and staged what would appear to be a traffic accident.

[43] In the final analysis, there is a body of evidence that suggests that the accused might have murdered the deceased. There is also an equally strong body of evidence that suggests he might not have murdered the deceased. The proven facts do not exclude a reasonable possibility that the deceased might have fallen or jumped from a stationary or a vehicle that was taking off or just taken off. It has not been proved as required by the law that the injuries on the

deceased, which caused her death, were inflicted by the accused. This is a fifty-fifty case, and in such a case, the seat of the *onus* becomes decisive, in that the party with the burden of proof would have failed to discharge the burden as required by the law. In other words, the threshold for a conviction has not been met in this case. It has been missed. The accused is entitled to the benefit of the doubt. The result will, of course, be a grave injustice if the accused in fact murdered the deceased. But that does not justify the commission of an even more serious injustice of convicting an accused without his guilt having been established as required by the law. See *S* v *Kuiper*2000 (1) ZLR 113 (S) at 118B-D; *R* v *Difford* 1937 AD 370 and *R* v *M* 1946 AD 1023; R v M1946 AD 1023 at 1027; *S* v *Jaffer*1988 (2) SACR 84 (C) at 89D. It is for these reasons that the majority members of the court are of the view that the State has not proved that the accused assaulted the deceased, causing the injuries that caused her death. He is therefore entitled to an acquittal.

In the circumstances, the accused is found not guilty and acquitted.

National Prosecuting Authority, state's legal practitioners
Ndlovu & Hwacha, accused's legal practitioners